



महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ११, अंक ३७]

सोमवार, ऑक्टोबर १३, २०२५/आश्विन २१, शके १९४७

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असाधारण क्रमांक ८२

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Agricultural Produce Marketing (Development and Regulation) (Amendment) Ordinance, 2025 (Mah. Ord. IX of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

[Translation in English of the Maharashtra Agricultural Produce Marketing (Development and Regulation) (Amendment) Ordinance, 2025 (Mah. Ord. IX of 2025), published under the authority of the Governor].

CO-OPERATION, MARKETING AND TEXTILES DEPARTMENT

Mantralaya, Madam Cama Marg, Hutatma Rajguru Chowk,
Mumbai 400 032, dated the 13th October 2025.

MAHARASHTRA ORDINANCE No. IX OF 2025.

AN ORDINANCE

*further to amend the Maharashtra Agricultural Produce Marketing
(Development and Regulation) Act, 1963.*

WHEREAS both Houses of the State Legislature are not in session ;

AND WHEREAS the Governor of Maharashtra is satisfied that circumstances exist which render it necessary for him to take immediate action further to amend the Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963, for the purposes hereinafter appearing ;

Mah.
XX of
1964.

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of article 213 of the Constitution of India, the Governor of Maharashtra is hereby pleased to promulgate the following Ordinance, namely :—

Short title
and
commence-
ment.

1. (1) This Ordinance may be called the Maharashtra Agricultural Produce Marketing (Development and Regulation) (Amendment) Ordinance, 2025.

(2) It shall come into force at once.

Amendment
of section 2 of
Mah. XX of
1964.

2. In section 2 of the Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963 (hereinafter referred to as “the principal Act”),—

Mah.
XX of
1964.

(1) after clause (j), the following clause shall be inserted, namely :—

“(j-1) “Market of National Importance” means the Market of National Importance established under section 5-1A ;”;

(2) after clause (k), the following clause shall be inserted, namely :-

“(k-1) “National Agriculture Market” means an integrated market where, notwithstanding anything contained in any law for the time being in force, buying and selling of agricultural produce and activities incidental thereto are carried out either electronically or otherwise in India possessing marketing utility across time and space ;”;

(3) after clause (t), the following clause shall be inserted, namely :-

“(t-1) “Unified Single Trading Licence” means Unified Single Trading Licence granted under section 7A or recognised under section 7B for intrastate or interstate trade ;”.

Insertion of
new Chapter
after Chapter
I-A in Mah.
XX of 1964.

3. After Chapter I-A of the principal Act, the following Chapter shall be inserted, namely :—

“CHAPTER I-1A

ESTABLISHMENT OF MARKET OF NATIONAL IMPORTANCE

Establishment
of Market
of National
Importance.

“5-1A. (1) The State Government may, by notification published in the *Official Gazette*, designate any existing market established under section 5 as “Market of National Importance” or establish any market as “Market of National Importance”, after consideration of such aspects regarding marketing of agricultural produce like total throughput value, upstream catchment area, down-stream number of consumers served and special infrastructure requirements therefor, requiring regulation by Market of National Importance :

Provided that, the market handling not less than eighty thousand metric tons agricultural produce or such annual tonnage or such annual value, as may be specified by the Government by an order, from time to time, and in which agricultural produce arrives from not less than two other States, may be considered for designating the Market of National Importance.

(2) Notwithstanding anything contained in this Act, the regulation of marketing in Market of National Importance shall be in such manner as may be prescribed.

- 5-1B.** (1) The Market Committee of Market of National Importance shall consist of the following members, namely :—
- (i) Minister for Marketing - Chairman ;
- (ii) Minister of State for Marketing - Vice-Chairman ;
- (iii) Commissioner of Agriculture or his representative, who shall not be below the rank of Joint Director ;
- (iv) Director of Marketing or his representative, who shall not be below the rank of Joint Registrar of Department of Co-operation ;
- (v) Executive Director, Maharashtra State Agriculture Marketing Board, Pune or his representative, who shall not be below the rank of Joint Registrar of Department of Co-operation ;
- (vi) Four agriculturists from the revenue division in which the Market of National Importance is situated, out of them two agriculturists shall be from the area of the Market Committee (of which one shall be woman and one shall be a person belonging to the Scheduled Castes or Scheduled Tribes or Other Backward Classes or De-notified Tribes (*Vimukta Jatis*) or Nomadic Tribes) ;
- (vii) If required, two agriculturist recommended by other State Governments (one each from two other States), wherefrom maximum arrivals of agricultural produce are received in the Market Yard of National Importance, to be nominated by the State Government of Maharashtra;
- (viii) Three members holding the licence of Trader of the concerned Market of National Importance, out of them one shall be from agro-processing industry who has experience of minimum three years as a Director or partner in concerned processing industry (of which one shall be woman and one shall be a person belonging to the Scheduled Castes or Scheduled Tribes or Other Backward Classes or De-notified Tribes (*Vimukta Jatis*) or Nomadic Tribes) ;
- (ix) One person nominated by the Government who is an expert in any of the fields of finance, marketing, co-operation, management or import-export.
- (2) (a) The Market Committee may invite the following persons as special invitees for the purpose of assisting or advising it on any matter or matters, namely :—
- (i) One representative of Agricultural and Processed Food Products Export Development Authority (**APEDA**), after obtaining prior permission of the concerned authority of the Government of India ;
- (ii) Managing Director of Maharashtra State Warehousing Corporation or his representative (who shall not be below the rank of Joint Registrar of Department of Co-operation) ;
- (iii) Administrative Head of the Local Government Body or an Officer, not below the rank of Officer of Group A nominated by him in the area where the Market of National Importance is situated.
- (b) Such special invitees may take part in the meetings of the Committee, but shall have no right to vote.
- (3) An officer from Agriculture, Marketing, Co-operation, Revenue Department or Government Officer from any other Department, who is holding an equivalent post of Joint Registrar of Department of Co-operation, to be nominated by the State Government, shall be the Secretary of the market committee.

Composition
of Market
Committee
of Market
of National
Importance.

(4) The persons nominated by the State Government to be the members of Market Committee of Market of National Importance shall hold office for the period of five years from the date of nomination or until the pleasure of the State Government.

(5) Notwithstanding anything contained in this Act, as soon as the notification of establishment of Market of National Importance is issued under section 5-1A by the State Government, the existing Market Committee shall cease to function and all the existing Committee members shall cease to hold their office.

Executive
Committee
of Market
Committee
of Market
of National
Importance.

5-1C. (1) There shall be Executive Committee consisting of such persons as may be prescribed for carrying out day to day duties of the Market Committee of Market of National Importance.

(2) The Market Committee may delegate any of its powers and duties to the Executive Committee by order in writing.

Application
of certain
sections to
Market of
National
Importance.

5-1D. The provisions of this Act which applies to the markets established under section 5 shall, except the provisions of proviso to section 12(1) and sections 12 (3), 13, 14, 14A, 15, 15A, 16, 17, 18, 19, 20, 21, 21A, 22, 23, 23A, 24, 25, 26, 27, 27A, 28, 41A and 45, apply to the Market of National Importance.”

Amendment
of section 5D
of Mah. XX of
1964.

4. In section 5D of the principal Act, in sub-section (6), in clause (a), after the words “The provisions of” the words, figures and letters “section 7A, section 10A,” shall be inserted.

Amendment
of section 6
of Mah. XX of
1964.

5. In section 6 of the principal Act, in sub-section (2A), for the words “except as provided in section 5D, shall not require any licence or permission, and shall not be regulated by the Market Committee.” the words “shall require licence as provided in section 5D or licence or permission from the Market Committee, however no market fees shall be chargeable from such licensee by the Market Committee.” shall be substituted.

Amendment
of section 7
of Mah. XX of
1964.

6. In section 7 of the principal Act, sub-section (3) shall be deleted.

Insertion of
new sections
7A and 7B in
Mah. XX of
1964.

7. After section 7 of the principal Act, the following sections shall be inserted, namely :—

Grant of
Unified Single
Trading
Licence.

“7A. (1) There shall be a Unified Single Trading Licence for the whole of the State for the trader to be granted or renewed by the Director or by an Officer authorized by him, in such manner and in such form, as may be prescribed, to operate as trader in any principal market yard, submarket yard, private market yard and e-trading platform or any other space identified for the purpose in the State.

(2) Any person desirous of obtaining or renewing a Unified Single Trading Licence under sub-section (1) as a trader, shall apply to the Director or an Officer authorized by him in such form along with such fee as may be prescribed.

(3) The Director or an Officer authorized by him, on receipt of an application under sub-section (2), subject to the provisions of this Act and rules made in this behalf after making such inquiries as he deems fit, may grant or renew the licence for such period as may be prescribed :

Provided that, notwithstanding anything contained in this Act and the rules, there shall be no consideration of domicile, compulsory requirement of purchase or collection centre or minimal quantity for grant or renew of such licence :

Provided further that, such licence granted or renewed shall entail to the licensee to carry out trade of any form *i.e.* primary or secondary or whatsoever, without any discrimination.

(4) The Unified Single Trading Licence issued by the Director or an Officer authorized by him under this section shall bear such unicode as may be prescribed.

7B. Notwithstanding anything contained in this Act, the State may allow holder of Unified Single Trading Licence bearing Unicode issued by any other State or Union Territory to undertake trade transaction within its geographical jurisdiction on e-platform or any other format including physical, that may be in operation, as a trader, in such manner as may be prescribed.

Recognition of Unified Single Trading Licence granted or renewed by other States or Union Territories for inter-state trade.

(2) Such licensee shall be liable to pay the market fee and other marketing charges at the rate applicable in the State where trade transaction takes place in the manner as may be prescribed.”.

8. In section 8 of the principal Act, after sub-section (3), the following sub-section (4) shall be added, namely :—

Amendment of section 8 of Mah. XX of 1964.

“(4) If the licence is suspended or cancelled under this section, then the holder of such licence shall forthwith produce the same in the office of the Market Committee or an Director or an Officer authorized by him, as the case may be, and he shall not be entitled to any claim on account of such suspension or cancellation any compensation or refund of the whole or any part licence fee or any other money.”.

9. In section 10 of the principal Act, after sub-section (6), the following sub-section shall be added, namely :—

Amendment of section 10 in Mah. XX of 1964.

“(7) Any dispute arising between and among the Unified Single Trader Licensees, seller, farmer, Market Committee and holder of Unified Single Licensees of other State or Union Territories who are allowed to undertake trade transaction within the geographical jurisdiction of Maharashtra on e-platform or any other format including physical that may be in operation, as trader, including any dispute regarding the quality or weight or payment of any agricultural produce, or any matter in relation to the regulation of marketing of agricultural produce may be resolved by the Director or an Officer authorized by him, in a summary manner within thirty days, after giving the parties a reasonable opportunity of being heard.

(8) Any person aggrieved by the order of the Director or an Officer authorized by him under sub-section (7), may prefer an appeal to the State Government or an Officer authorized by it, in such form and manner as may be prescribed, within thirty days from the date of the receipt of such order. The Appellate Authority shall dispose of an appeal after giving the parties a reasonable opportunity of being heard, within a period of thirty days from the date of receipt thereof.”.

10. In section 34A of the principal Act, in sub-section (1), for the words “the State Government” the words “the Director” shall be substituted.

Amendment of section 34A of Mah. XX of 1964.

Power to
remove
difficulty.

11. (1) If any difficulty arises in giving effect to the provisions of the principal Act, as amended by this Ordinance, the State Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of the principal Act, as amended by this Ordinance which appears to it to be necessary or expedient for the purpose of removing the difficulty.

(2) Every order made under sub-section (1) shall be laid, as soon as may be, after it is made before each house of the State Legislature.

STATEMENT

The Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963 (Mah. XX of 1964) is enacted to develop and regulate the marketing of agricultural and certain other produce in market areas and markets including private markets and farmer consumer markets established therefor in the State, to confer powers upon Market Committees and to provide for purposes connected with the matters aforesaid.

2. The State Government is consistently trying to get better prices for agricultural produce to the farmers. To bring consistency and transparency in the prevailing auction system and to get fair prices for agricultural products, the Central Government has started e-National Agricultural Market Scheme (e-NAM) based on the concept of one market at national level for sale and purchase agricultural produce.

To minimise hurdles in trading of agricultural produce and for getting better prices to farmers for their agricultural produce in the market committees of the State, e-National Agricultural Market Scheme is implemented. However, in the absence of provision of Single Unified Trading Licence in the said Act, for the whole State, the e-National Agricultural Market Scheme could not be implemented in inter market and inter State trade under e-NAM scheme. In order to effectively implement the e-NAM scheme in the State, the Government considers it expedient to amend the said Act to provide for Single Unified Licence for trade in agriculture produce throughout the State and inter State trade also, if so recognised by the other State.

3. Considering need of special requirement of infrastructure and better facilitation of sale of agricultural produce in any existing market, which is handling not less than eighty thousand metric tons agriculture produce and in which agricultural produce comes from not less than two other States, it is considered necessary to establish it as Market of National Importance or to establish any such market as Market of National Importance.

The provision is also made for establishment of Market Committee of Market of National Importance and Executive Committee for carrying out day to day duties of such Market Committee.

4. The provision is made to provide for resolution of disputes regarding quality or weight or payment of any agricultural produce between and amongst the Unified Single Trader Licensees, farmer, seller and Market Committee.

5. These amendments will ensure that the farmers in the State will get maximum benefit from the competitive prices of agricultural produce.

6. As both Houses of the State Legislature are not in session and the Governor of Maharashtra is satisfied that circumstances exist which render it necessary for him to take immediate action to amend the Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963 for the purposes aforesaid, this Ordinance is promulgated.

Mumbai,

Dated 8th October 2025.

ACHARYA DEVVRAT,

Governor of Maharashtra,

By order and in the name of the
Governor of Maharashtra,

PRAVIN DARADE,

Principal Secretary to Government.